



AMENDMENT OF PLEADINGS — 06 R17

- Apoorva Sharma
Assistant Professor, School of
Law, UPES



Court may at any stage of the proceedings- allow either party to alter/amend his pleadings – in such a manner/terms as may be just.

When? – explanation –

At any stage BUT no application for amendment shall be allowed after trial has commenced unless court comes to a conclusion that despite due diligence, party could not have raised the matter before the commencement of trial.

RULE 17

WHY?

Necessary for the purpose of determining the real questions in controversy between the parties.

Cropper V. Smith – object? – rights of parties are important and they should not be punished for errors.

Cant replace cause of action or change the nature of the suit.

Court has to balance two things :

A. suit shall be comprehensively decided and just decision requires that all the issues and reliefs shall be raised in the same suit.

B. A party should not be allowed to benefit of his own negligence and opposite party should not suffer from it.

WHEN AMENDMENT CAN BE ALLOWED?

Bonafide mistake/ parties described wrongly/ court can compensate mistake.

Change in circumstances.

No injustice to other side and TO DETERMINE REAL CONTROVERSY – Kisandas V. Rachappa Vithoba 1909

To avoid multiplicity of proceedings – Paragon Rubber Ind V. Pragathi Rubber Mills

WHEN NOT ALLOWED?

Malafide, no good faith

If amendment seeks to take away legally acquired right of other party

Changes in fundamental character of suit

Inconsistent pleadings not allowed

Estoppel

*merits of a case are not considered.

LIC V. SANJEEV BUILDERS 2022 SC

Sanjeev builders filed a suit in 1986 against LIC seeking specific performance of agreement to sell or alternatively damages.

Amendment application: in 2017, enhance damages claimed. Basis that over the decades the suit was pending, the value of property increased.

Bomb HC permitted the amendment. LIC challenged in appeal.

SC – all amendment to determine real controversy are allowed provided it does not cause injustice/ prejudice to the other party. Cannot raise a time-barred claim but allowed in interest of justice.